

1.5.1.

The lodestar fee presented by plaintiff is \$252,965. The total number of hours is 341.9, with hourly rates ranging from \$475 to \$1,025. This results in an imputed multiplier of 0.59, i.e., a “negative” multiplier. While the billing of a \$1,025 rate might be questioned, counsel have in essence discounted their lodestar by 41%, which is sufficient. The attorney’s fee of \$150,000 is reasonable and is approved.

Litigation costs of \$12,522.87 are reasonable and are approved.

Settlement administration costs of \$47,550.85 are reasonable and are approved.

The requested representative payment of \$2,500 for plaintiff will be reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests to her work on the case, and that since the data incident she has experienced identity theft and suspicious phishing emails. She has spent several hours working on the case. The \$2,500 payment is approved.

The motion for approval of attorney’s fees, costs, administrative costs, and representative payment is granted.

D. Conclusion

The Court finds that the settlement is fair, reasonable, and adequate, and grants the motion for approval, as well as the motion for approval of fees and costs. Counsel are directed to prepare an order reflecting this ruling as well as the other items in the proposed order, and a final judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. That hearing date should be determined in consultation with the Department 39 clerk, but will be held in Department 16. Department 16, the Honorable Benjamin Reyes is assigned to this matter for all purposes as of March 1, 2026. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. If any funds are to be provided to the cy pres recipient, that shall be documented in the compliance declaration, and the judgment shall be amended to reflect the authorized payment. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

5. 9:00 AM CASE NUMBER: C23-01684
CASE NAME: STAR JOSHUA VS. THE COUNTY OF CONTRA COSTA
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:
See line 4.

6. 9:00 AM CASE NUMBER: C23-02285
CASE NAME: FREDRICK HAGEN VS. TOWN OF DANVILLE
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES TO SPECIAL INTERROGATORIES, SET 1**
FILED BY: CENTRAL CONTRA COSTA SANITARY DISTRICT
TENTATIVE RULING:
Defendant Central Contra Costa Sanitary District (District) moves to compel further responses to